

Court No. - 21

Case :- WRIT - C No. - 5047 of 2013

Petitioner :- Executive Engineer, Kanpur Electricity Supply Co. & Others

Respondent :- The P.O. Officer Consumer Grievance Redressal Forum & Anr.

Petitioner Counsel :- Dr. S.K. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

On prayer made by Dr. S.K. Yadav, learned counsel for the petitioners, the case is directed to be put-up as fresh on 1st February, 2013, so as to enable him to bring the relevant Case Law.

Order Date :- 30.1.2013

AS

Court No. - 21

Case :- WRIT - C No. - 5047 of 2013

Petitioner :- Executive Engineer, Kanpur Electricity Supply Co. & Others
Respondent :- The P.O. Officer Consumer Grievance Redressal Forum & Anr.

Petitioner Counsel :- Dr. S.K. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

It is submitted by Dr. S.K. Yadav, learned counsel for the petitioners that against the decision of the Consumer Grievance Redressal Forum established under sub-section (5) of Section 42 of the Electricity Act, 2003 read with Clause-7.10 of the U.P. Electricity Supply Code, 2005, Representation may be filed before the Ombudsman appointed under sub-section (6) of Section 42 of the said Act. However, the submission proceeds, such Representation can only be filed by the Consumer and not by the Licensee.

In the circumstances, it is submitted, the petitioners have no alternative remedy against the impugned order dated 23.11.2012, passed by the Consumer Grievance Redressal Forum. It is further submitted that the impugned order passed by the Consumer Grievance Redressal Forum, suffers from various illegalities.

Issue notice pending admission.

Notice will be issued to the respondents by Registered Speed Post, A.D. fixing the next date fixed in the matter.

Requisite steps will be taken by the learned counsel for the petitioners within a week.

Counter affidavit on behalf of the respondents may be filed by 27th February, 2013.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 6th March, 2013.

Prayer for interim relief will be considered by the next date fixed in the matter.

Order Date :- 1.2.2013

AS

Court No. - 21

Case :- WRIT - C No. - 5047 of 2013

Petitioner :- Executive Engineer, Kanpur Electricity Supply Co. & Others

Respondent :- The P.O. Officer Consumer Grievance Redressal Forum & Anr.

Counsel for Petitioner :- Dr. S.K. Yadav, Dr. S.K. Pathak

Counsel for Respondent :- S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

From a perusal of the report dated 13.3.2013, it appears that steps were taken for service of notices on both respondents.

Office has not submitted any report with regard to the service of notice especially against the respondent no. 2.

List in the next cause list along with the office report.

Order Date :- 3.3.2014

SKS

Court No. - 38

Case :- WRIT - C No. - 5047 of 2013

Petitioner :- Executive Engineer, Kanpur Electricity Supply Co. & Others

Respondent :- The P.O. Officer Consumer Grievance Redressal Forum & Anr.

Counsel for Petitioner :- Dr. S.K. Yadav, Dr. S.K. Pathak

Counsel for Respondent :- S.C., Dinesh Rai

Hon'ble Ran Vijai Singh, J.

Hon'ble Neeraj Tiwari, J.

We have heard Dr. Suman Kumar Yadav, learned counsel for the petitioners. Nobody appears on behalf of respondents.

By means of this writ petition, a prayer has been made to issue writ of certiorari quashing the order dated 23.11.2012 passed by respondent no. 1 i.e. Presiding Officer Consumer Grievance Redressal Forum by which it has been held that the amount deposited pursuant to the interim order shall be adjusted towards future bill. The order has been challenged on number of grounds but while entertaining the writ petition, only notices were issued and counter affidavit was called for, there is no interim order. It appears that by efflux of time the writ petition has become infructuous.

The petition is **disposed of** with the aforesaid observation.

However, in case, any cause of action survives, it will be open to the petitioner to seek recall of the order.

Order Date :- 30.1.2018

Arvind